



CHAPTER lxvii.

An Act to authorise the Hull and Barnsley Railway Company to construct a pier and railways at Hull and to purchase additional lands and for other purposes.

A.D. 1907.

[26th July 1907.]

WHEREAS by the Hull Barnsley and West Riding Junction Railway and Dock Act 1880 the Hull and Barnsley Railway Company (in this Act called "the Company") were incorporated by the name of the Hull Barnsley and West Riding Junction Railway and Dock Company for the purpose amongst other things of constructing and maintaining certain railways and a dock and other works in the East and West Ridings of the county of York and in the city and county (then the town and county of the town) of Kingston-upon-Hull :

And whereas divers other Acts have since been passed conferring further powers on the Company :

And whereas it is expedient that the Company be authorised to construct the pier or landing stage and railways and to acquire the lands herein-after described and to exercise the other powers conferred on them by this Act :

And whereas it is expedient that for the purposes of this Act the Company be authorised to apply their funds :

And whereas plans and sections showing the lines situations and levels of the pier or landing stage and railways authorised by this Act and the lands and other property in or through which the same will be made or pass and plans also of the other lands and property to be compulsorily taken under the powers of this Act and also books of reference to the said plans respectively containing the names of the owners and lessees or reputed owners

A.D. 1907. and lessees and of the occupiers of such lands respectively were duly deposited with the respective clerks of the peace for the East and West Ridings of the county of York and for the city and county of Kingston-upon-Hull and are herein-after respectively referred to as the deposited plans sections and books of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title. 1. This Act may be cited as the Hull and Barnsley Railway Act 1907.

Incorporation of general enactments. 2. The following enactments (as far as they are applicable for the purposes of and are not inconsistent with or expressly varied by this Act) are hereby incorporated with and shall be part of this Act (that is to say) :—

The Lands Clauses Acts ;

The Harbours Docks and Piers Clauses Act 1847 (with the exceptions of section 12 and unless the Board of Trade shall otherwise require sections 16 to 19) ;

The Railways Clauses Consolidation Act 1845 ; and

Part I. of the Railways Clauses Act 1863 relating to construction of a railway.

Interpretation. 3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction :

The expression "the pier" means the pier or landing stage and approaches thereto by this Act authorised ;

The expression "the railway" or "the railways" means the railways by this Act authorised ;

The expression "the Act of 1880" means the Hull Barnsley and West Riding Junction Railway and Dock Act 1880 ; and

The expression "the commissioners" means the Humber Conservancy Commissioners.

4. Subject to the provisions of this Act the Company may make and maintain in the lines or situations and within the limits of lateral deviation shown on the deposited plans and according to the levels shown on the deposited sections the works described in this section and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes.

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Power to construct pier and railways.

The works herein-before referred to and authorised by this Act will be situate in the parish of Sculcoates in the city and county of Kingston-upon-Hull in the East Riding of the county of York and are as follows:—

A pier or landing stage commencing at the jetty on the west side of the entrance to the Alexandra Dock of the Company at a point seventy-seven yards or thereabouts south-west of the heel post of the west outer gate of the lock entrance to that dock and extending thence in a south-westerly direction for a distance of one hundred and ninety yards or thereabouts and thence in a westerly direction for a distance of four hundred yards or thereabouts to and terminating at a point one hundred and sixty yards or thereabouts measured in a south-easterly direction from the south end of the timber jetty at the eastern boundary of the premises of Earles Shipbuilding and Engineering Company:

The pier and so much of the approaches as are situated over the River Humber shall be constructed and maintained of open pile work in accordance with the provisions of subsection 6 of the section of this Act whereof the marginal note is "For protection of commissioners":

A Railway (No. 1) 2 furlongs and 5 chains in length commencing by a junction with the railway lines of the Company and terminating on the pier at a point 397 yards or thereabouts measured in an easterly direction from the termination of the pier:

A Railway (No. 2) 7 furlongs and 5.50 chains in length commencing by a junction with the main line of the Company and terminating at a point four yards or thereabouts south of the northern boundary of the works of the National Radiator Company and 128 yards or thereabouts west of the eastern boundary thereof.

5. The piles forming the substructure of the four approaches to the pier shall be so placed as to leave a passage under each approach of not less than twenty-five feet in width measured on

Passage to be left in approaches.

A.D. 1907. the square And the Company shall so use the easternmost of such approaches as to allow of the user of the passage underneath the same by keels lighters and river craft at all times when the state of tide makes it reasonable for allowing access to the Alexandra Dock.

Power to
make sub-
sidiary
works.

6. The Company may from time to time make and maintain in connexion with the pier and the railways or any of those works all necessary or convenient jetties quays staithes wharves stages landing places dolphins moorings gangways approaches roads bridges gates sidings junctions stations warehouses sheds buildings machinery lifts appliances and other works and conveniences.

Limits of
deviation.

7. In constructing the pier the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may deviate vertically from the levels of the pier as shown on the deposited sections to any extent not exceeding five feet upwards and ten feet downwards Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Power to
dredge.

8. Subject to the provisions of the section of this Act of which the marginal note is "For protection of commissioners" the Company may from time to time deepen dredge scour cleanse alter and improve the bed shores and channel of the River Humber to the southward or riverward of the pier for the purpose of affording uninterrupted means of access thereto in accordance with the dredging operations to be undertaken by the commissioners and in such manner as shall be approved by the commissioners or by an arbitrator to be appointed in manner provided by the said section.

In carrying out such dredging the Company may remove any shingle rocks and shoals and otherwise improve the said approaches and so facilitate the access to the said works and the Company may use and appropriate any materials so dredged or removed Any such material excavated or dredged by them from time to time from the River Humber or from any part of the works as they are unable to use in their works they shall either deposit above high-water mark of spring tides or shall deposit in such places and situations within the limits of the jurisdiction of the commissioners as the commissioners shall from time to time direct or if the commissioners shall so require shall carry the same out to sea :

Provided that all materials excavated or dredged under the provisions of this section if deposited below high-water mark shall be deposited in such position and under such restrictions as may be fixed by the Board of Trade. A.D. 1907.

9.—(1) If by reason of the construction of the pier or any part thereof any accumulation of silt or other material shall create an impediment to the free access from any direction to any docks works or premises of the North Eastern Railway Company fronting on the north side of the River Humber or to any part of such docks works or premises or to the Hull Joint Dock or any part of such dock the Company shall if so requested by the North Eastern Railway Company at any time and from time to time during the construction and during a period of fifteen years after the completion of the pier or works causing such accumulation remove such accumulation and if the Company on such request refuse or fail to do so the North Eastern Railway Company may cause the work to be done and the amount of the expense occasioned thereby shall be a debt due from the Company to the North Eastern Railway Company and be recoverable accordingly. For protection of North Eastern Railway Company.

(2) If any question or difference shall arise between the Company and the North Eastern Railway Company with reference to any matter comprised or referred to in this section the matter in dispute shall be decided by an engineer to be appointed as arbitrator failing agreement by the Board of Trade on the application of the Company or of the North Eastern Railway Company.

10.—(1) If by reason of the construction of the pier or any part thereof any accumulation of silt or other material shall create an impediment to the free access from any direction to the shipbuilding yard of Earles Shipbuilding and Engineering Company (Limited) (in this section called "Earles Company") fronting on the north side of the River Humber or to any part of such yard the Company shall if so required by Earles Company at any time and from time to time during the construction and during a period of fifteen years after the completion of the pier or works causing such accumulation remove such accumulation and if the Company on such request refuse or fail to do so Earles Company may cause the work to be done and the amount of the expense occasioned thereby shall be a debt due from the Company to Earles Company and be recoverable accordingly. For protection of Earles Shipbuilding and Engineering Company (Limited).

(2) If any question or difference shall arise between the Company and Earles Company with reference to any matter comprised or referred to in this section the matter in dispute shall

A.D. 1907. be decided by an engineer to be appointed as arbitrator failing agreement by the Board of Trade on the application of the Company or of Earles Company.

Works below high-water mark not to be commenced without consent of Board of Trade.

11. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of works by Board of Trade.

12. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of any work constructed by the Company under the powers of this Act on in over through or across tidal lands or tidal waters or of the intended site of any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Abatement of works abandoned or decayed.

13. If any work constructed by the Company under the powers of this Act on in over through or across tidal lands or tidal waters is abandoned or suffered to fall into decay the Board of Trade or the commissioners may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown or to the commissioners as the case may be and be recoverable as a Crown debt or summarily.

Lights on works during construction.

14. The Company shall at or near the pier below high-water mark during the whole time of constructing altering or extending the same exhibit and keep burning at their own expense every

night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve. If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

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15. The Company shall at the outer extremity of the pier below high-water mark exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Hull Trinity House shall from time to time direct. If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Permanent
lights on
works.

16. In case of injury to or destruction or decay of the pier or works or any part thereof the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Hull Trinity House and shall apply to the Hull Trinity House for directions as to the means to be taken and the Company shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Provision
against
danger to
navigation.

17. Every person who wilfully obstructs any person acting under the authority of the Company in setting out the line of the pier or the works connected therewith or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the line of the works shall for every such offence be liable to a penalty not exceeding five pounds.

Penalty for
obstructing
works.

18. Whereas pursuant to section 12 of the Humber Conservancy Act 1905 the commissioners have submitted to the Board of Trade and the Board of Trade have consented to a dredging scheme to be carried out by the commissioners pursuant to which scheme the commissioners will forthwith dredge away a portion of the Hebble Shoal adjoining the Hull Roads of the River Humber to a depth of fourteen feet below Admiralty low-water mark of ordinary spring tides along the dredging line on the plan showing the said scheme with a two to one slope rising shoreward of such line and a slope riverward of such line to a

For protec-
tion of com-
missioners.

A.D. 1907. — depth of eighteen feet below Admiralty low-water mark at a distance of one hundred feet from such line and such depth of eighteen feet to be continued southward to the deep water channel :

And whereas it is proposed that the pier shall be constructed upon the Hebble Shoal to the north of that portion of the shoal which will be dredged away and that the southern face of the pier shall be constructed along the said dredging line :

And whereas the site of the proposed works will be to the southward or riverward of the Alexandra Dock river wall which wall was constructed upon the then existing river line :

And whereas such dock wall having been built upon the river line no coloured line relating thereto was shown upon the plans referred to in section 13 of the Humber Conservancy Act 1905 :

Therefore in the exercise of the powers of this Act the following provisions for the protection of the commissioners shall have effect and apply to the Company and the commissioners respectively (that is to say):—

- (1) The Company may execute such further dredging as will extend the eighteen feet depth of water up to the southern face of the pier and to such extent northward of such face as may be necessary to properly slope off the river bed from the eighteen feet depth to the level of the existing river bed under the pier. In which event the Company shall also dredge eastward of the face of the pier along the dredging line to such extent as may be necessary to carry the said eighteen feet depth as far as the centre line of the entrance channel of the Alexandra Dock and westward of the face of the pier along the dredging line to such extent as may be necessary to join the eighteen feet contour line :
- (2) The channel as dredged by the Company in accordance with the provisions of this section shall be maintained by the Company at the depth to which the same shall have been dredged throughout the whole area over which such dredging shall have taken place :
- (3) The Company shall before commencing any dredging deliver to the commissioners plans and sections defining the nature extent and manner of such dredging and if the commissioners shall not within two months after

the delivery of such plans and sections approve the same any question as to the dredging proposed to be carried out by the Company shall be referred to the arbitrator to be appointed as herein-after provided and the Company shall not carry out such dredging otherwise than in accordance with such plans and sections and in such manner as may be approved by the commissioners or by such arbitrator as the case may be : A.D. 1907.

- (4) The commissioners may and are hereby empowered to execute and carry out any of the dredging works authorised to be executed and carried out by the Company under the provisions of this Act at the sole cost and expense of the Company and upon such terms and conditions as may be agreed :
- (5) The survey of the River Humber in the vicinity of the site of the pier made in the year 1906 under the direction of the commissioners shall be for the purposes of this Act accepted by the Company and the commissioners as conclusive evidence of the condition of that part of the river at the time when such survey was made :
- (6) Notwithstanding anything shown on the deposited plans and sections or in this Act contained or in any Act incorporated therewith the Company shall not—
 - (A) Dredge the river to a greater depth or in any other manner than is referred to in the previous part of this section ;
 - (B) In respect of the pier acquire any greater right or interest in the foreshore and bed of the River Humber than an easement or right of constructing and maintaining the pier in the lines and situations shown on the deposited plans which easement or right the commissioners and the Board of Trade are hereby empowered to grant The compensation for such easement or right shall be a rent-charge to be fixed (unless otherwise agreed with the commissioners with the approval of the Board of Trade) by arbitration under the provisions of the Lands Clauses Consolidation Act 1845 and such grant shall be subject in other respects to the Humber Conservancy Act 1868 ;

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(c) Enter upon take or use any part of the bed of the River Humber except for dredging and temporary works to the southward of the position of the pier shown upon the deposited plans ;

And the Company shall construct the pier so that the average space between each successive pile from northward to southward shall be not less than thirteen feet and six inches and the average space between each successive pile from eastward to westward shall be not less than ten feet and six inches except in the case of piles at the rounded angles of the pier and except where necessary to support a crane or hoist or other heavy work and the Company shall round off the south-western corner of the pier in manner required by the commissioners to a radius of twenty feet and shall not construct the southern face of the pier in any other position than that shown upon such plans The commissioners with the consent of the Board of Trade are hereby empowered to sell or surrender the rentcharge mentioned in this subsection :

(7) Before commencing the construction of the pier on the foreshore or bed of the River Humber plans and sections and specifications showing the general mode of construction thereof shall be furnished by the Company to the clerk to the commissioners and the approval of the commissioners to such plans and sections and specifications or in case of difference the approval of the arbitrator to be appointed as hereinafter provided shall be obtained by the Company before commencing the work and the pier shall be executed to the reasonable satisfaction of an engineer to be appointed by the commissioners :

(8) All temporary structures in the River Humber which may be necessary to enable the pier to be constructed shall be constructed so as not to interfere more than may be necessary with the navigation of or the traffic on the River Humber and to the reasonable satisfaction in all respects of an engineer to be appointed by the commissioners in accordance with plans to be submitted to and approved by the commissioners or in case of difference approved by an arbitrator to be appointed as herein-after provided before the commencement of any such temporary structures and after

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the purpose for which such temporary structures were constructed has been accomplished the Company shall with all despatch or after fourteen days' notice in writing thereafter from the commissioners so to do remove any such temporary structures or any materials for the same which may have been placed in the River Humber by the Company and on their failing so to do the commissioners may remove the same charging the Company with the expense of so doing and the Company shall forthwith repay to the commissioners all expenses so incurred :

- (9)—(i) If during the construction of the pier or any part thereof or any temporary structures in connexion therewith or within two years after the completion of the pier or after the removal of such temporary structures and in consequence of the construction of such works or temporary structures any accumulation of silt or other material shall be caused or arise in the vicinity of the pier or which create any impediment to the free navigation of that part of the River Humber known as "Hull Roads" the Company shall if so requested by the commissioners at any time and from time to time during the construction and within the period of two years after the completion of the work causing such accumulation remove such accumulation and if the Company on such request refuse or fail to do so the commissioners may themselves cause the work to be done and the amount of the expense occasioned thereby shall be a debt due from the Company to the commissioners and be recoverable accordingly ;

(ii) Should any such accumulation arise within the said period of two years and be removed in accordance with the provisions of this section then any recurrence of such accumulation shall be deemed to have arisen or to have been occasioned by reason of the construction of the pier and shall from time to time be removed as aforesaid for a period of ten years from the completion of the pier or after the removal of any temporary structures ;

(iii) The Company shall if so requested by the commissioners remove any accumulation of silt or other material which may at any time and from time to

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time arise under the pier or the intervening space between the river wall of the Alexandra Dock and the pier and if the Company on such request refuse or fail to do so the commissioners may themselves cause the work to be done and the amount of the expense occasioned thereby shall be a debt due from the Company to the commissioners and be recoverable accordingly :

- (10) In the event of the commissioners omitting to express their disapproval of any plans sections or specifications within two months after the same shall have been furnished to the commissioners in pursuance of this section the commissioners shall be deemed to have approved the same :
- (11) If any part of the pier is not executed within the period mentioned in the section of this Act whereof the marginal note is "Period for completion of works" any portion of the bed and foreshore of the River Humber acquired by the Company from the commissioners or any easement acquired over any such bed and foreshore exclusively for or in respect of the unexecuted part shall revert to and vest in the commissioners and be held by them under the same conditions and covenants as before such bed and foreshore or easement was so acquired unless the commissioners shall consent to the retaining and holding of such bed and foreshore or easement by the Company or the period limited by the said section for the construction of the said works is extended by the authority of Parliament In the event of any such reversion to the commissioners a proportionate part of the rentcharge shall cease to be payable :
- (12) The Company shall allow at all times free access both by water and by land to the commissioners their officers and servants over the pier without payment or hindrance whilst in the execution of their duties :
- (13) The Company and the commissioners may agree in writing for any variation or alteration in the provisions of this section except those contained in the last paragraph of subsection 6 :
- (14) In the event of any question or difference arising between the commissioners and the Company under

the provisions of this section (other than a difference arising under and referred to in subsection (6) (B) of this section) such question or difference shall be referred to an engineer to be appointed as arbitrator by the Board of Trade on the application of the Company or of the commissioners : A.D. 1907.

- (15) Except as in this Act otherwise expressly provided nothing contained in this Act shall prejudice or alter or be deemed to prejudice or alter any of the provisions of the Humber Conservancy Acts 1852 to 1905 or any of them or any title of the commissioners into or over any lands or foreshore held or acquired by them under the said Acts or any of them or under any lease or agreement made under the powers thereof or confirmed thereby or any other of the rights powers privileges or authorities of the commissioners.

19. The Company shall at all times keep at the outer extremity of the pier and at reasonable distances along the pier and in accordance with any requirements which may be made by the Board of Trade a sufficient number of lifebuoys and lines in good order and fit and ready for use. Lifebuoys to be kept.

20. The limits of the dock and within which the powers of the dock master of the Company may be exercised are hereby extended and shall be deemed to include the pier and the intervening water space between the shore and the pier and also a distance of one hundred yards southward or riverward of the pier and fifty yards to the westward of the pier but the jurisdiction of the dock master conferred by this Act shall be limited to vessels going to moored at or departing from the pier and shall not be exercised so as to affect vessels navigating or at anchor in the channels of the River Humber unless such vessels shall obstruct the approach to the pier : Extension of limits of dock master's jurisdiction.

Provided however that the dock master shall not exercise his powers in such manner as to unreasonably obstruct or interfere with any vessel approaching leaving or lying in front of the part of the Western Reservation retained by the corporation or any pier or other works which may hereafter be constructed in front of the same.

21. Sections 134 and 136 of the Act of 1880 and section 6 of the Hull and Barnsley Railway Act 1905 shall be read and have effect as if the pier had been referred to therein as well as the dock and other works therein respectively mentioned. Extension of existing provisions to pier.

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Rates for
persons
using pier
and for pas-
sengers' lug-
gage &c.

22. The Company may demand and receive for every person who shall use or land from or embark on any vessel at the pier and in respect of passengers' luggage and bicycles tricycles or other similar vehicles landed shipped or transhipped at the pier any sums not exceeding the several rates and sums respectively specified in the First Schedule to this Act.

Rates pay-
able on
goods.

23. The Company may demand and take for all animals and goods mentioned in Schedule B to the Act of 1880 which shall be shipped or unshipped received or delivered from on or over the pier any sums not exceeding the several rates specified in the first and second columns of that schedule and as to all such goods as shall not be mentioned in the said schedule the Company may demand and take a rate equal to the rate for the time being payable in respect of goods of a similar nature package and quality and every such rate shall be payable by the owner or consignee of the goods.

Power for
Company to
charge for
services in
shipping un-
shipping &c.
goods at pier.

24. The Company may make such reasonable charges as they think fit for services rendered by them in respect to ship- ping unshipping landing relanding housing unhousing handling weighing metering measuring coopering packing cording tying marking numbering labelling lettering sorting lotting tearing filling sewing bagging sampling piling unpling watching loading unloading protecting delivering and repairing goods and for pre- paring and furnishing certificates of weights or contents and for trimming coals and for any other service with respect to goods shipped or unshipped or warehoused or deposited at the pier and the Company may render any such services when they think proper.

Dues on
vessels.

25. The Company may demand and take for or in respect of any vessel which shall moor to lie alongside or use the pier such reasonable dues or charges on such vessel as the Company may think fit not exceeding the dock tonnage rates set forth in Schedule A. to the Act of 1880.

Rates may
be levied
though pier
not com-
pleted.

26. If it is at any time certified in writing under the hand of an officer to be appointed for the purpose by the Board of Trade but to be paid by the Company that the pier has been so far completed as to afford increased accommodation for the landing and embarking or the shipping and unshipping of passengers animals or goods by means of the pier the Company may notwithstanding the twenty-fifth section of the Harbours Docks and Piers Clauses Act 1847 and although the whole of

the pier has not then been completed demand recover and receive such of the rates or such proportion of all or any of the rates which by this Act the Company are empowered to take as will in the opinion of the Board of Trade be commensurate with the increased accommodation afforded. A.D. 1907.

27. In order to facilitate the ingress and egress of keels lighters and river craft (all herein-after called "river craft") into and out of the Alexandra Dock of the Company the following facilities shall before the existing western jetty of the bell-mouth entrance to the dock is interfered with or before the construction of the pier is commenced be provided and guaranteed by the Company viz. :— For protection of river craft and traffic.

- (1) The eastern jetty of the bell-mouth entrance to the lockpit shall be lengthened to an extent reasonably necessary for the accommodation at all times of all inward and outward bound river craft using the dock and in any event to an extent not less than one hundred yards notwithstanding which the river craft shall be entitled to use the western jetty of such bell-mouth entrance (being the eastern side of the pier) whenever the same is not occupied or reasonably required for sea-going vessels :
- (2) The Company shall provide and at all times maintain a sufficient number of hydraulic or other equally effective capstans of sufficient power fully equipped with all necessary ropes gear or other appliances and also a sufficient number of steam tugs similarly equipped and shall free of all toll or charge use and work the same to assist river craft into and out of the dock from or to the said eastern jetty at all reasonable states of the tide not being less than the period between three hours before and three hours after high water :
- (3) The Company shall also free of all toll or charge provide a sufficient and adequate number of men for the working of such capstans tugs and appliances and otherwise for the purposes of assisting river craft into and out of the dock as aforesaid :
- (4) River craft outward bound from the dock whose private tug is not already in attendance or which shall not immediately proceed on their voyage shall be taken to and shall moor at the easternmost portion of the said

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eastern jetty and river craft inward bound to the dock shall be taken to and shall moor at the westernmost portion of the said jetty :

- (5) The Company shall afford all other reasonable facilities free of toll for the ingress and egress of river craft into and from the dock for the purpose of receiving or delivering cargo during a reasonable period before and after high water during which period moreover river craft shall not be kept waiting for an unreasonable time :
- (6) The Railway and Canal Commission shall have the like jurisdiction to hear and determine a complaint of a contravention or violation of this section as they have to determine a complaint of a contravention or violation of section 2 of the Railway and Canal Traffic Act 1854 as amended by subsequent Acts :
- (7) A complaint under this section may be made by the Hull River Craft and Lighter Owners' Association Limited or by the Keel and Lighter Owners' Mutual Insurance and Protecting Society Limited or their respective successors or by the mayor aldermen and citizens of the city and county of Kingston-upon-Hull or the Hull Incorporated Chamber of Shipping and Commerce or by any person aggrieved or by any of the authorities mentioned in section 7 of the Railway and Canal Act 1888 without proof that such authority is aggrieved by the matter complained of :
- (8) Notwithstanding anything in this Act the pier shall for all purposes of tolls dues rates and charges in respect of goods loaded or unloaded overside from or into river craft and lighters without passing over the pier and in respect of such craft mooring to lying alongside or using the pier for the purpose only of loading or unloading such goods overside or for the purpose of shelter in case of stress of weather accident or other similar or unavoidable circumstances and also in respect of the crew of such lighters and river craft using such pier for any of the purposes aforesaid be deemed to form part of the Alexandra Dock undertaking of the Company and the provisions of the Acts of Parliament relating to such undertaking shall mutatis mutandis be applied and extended to the pier.

28. For the purposes of tolls rates and charges and for all other purposes whatsoever the railways shall be deemed to form part of the railways of the Company.

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Tolls on railways.

29. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Crown rights.

30. Nothing in this Act contained shall prejudice or affect the rights and privileges of the Corporation of Trinity House Deptford Strond.

Saving rights of Trinity House Deptford Strond.

31. Subject to the provisions in the Railways Clauses Consolidation Act 1845 and in Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863 contained in reference to the crossing of roads on the level the Company may in the construction of the Railway No. 2 by this Act authorised carry the same with a single line only whilst that railway shall consist of a single line and afterwards with a double line only across and on the level of the road numbered on the deposited plans 16 in the parish of Sculcoates.

Power to cross certain road on level.

32. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "Company or society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Protection of gas and water mains of local authorities.

33. The following provisions for the protection and benefit of the mayor aldermen and citizens of the city and county of Kingston-upon-Hull (in this section referred to as "the corporation.

For protection of Kingston-upon-Hull Corporation.

A.D. 1907. — poration") shall unless otherwise agreed in writing between the corporation and the Company apply and have effect:—

(1) Notwithstanding anything in this Act contained or shown on the deposited plans the Company shall not construct the pier further westward than as shown on the deposited plans:

(2) The part of the said Railway No. 2 crossing the road known as National Avenue on the level and forming the siding connexion to the National Radiator Company's works shall not without the consent of the corporation be used for any traffic other than that to or from the works of the National Radiator Company or to or from any other works to be erected on the west side of National Avenue:

(3) The Company shall at their own cost construct and maintain on lines to be selected by the corporation two good and sufficient culverts three feet wide and four feet high with flat invert and circular tops underneath the said Railway No. 2 where the same will cross National Avenue or any extension thereof on the level such culverts to be used only by and to be under the control of the corporation for the purpose of laying gas water electric light and other pipes cables and wires with all necessary and usual appliances and the Company shall not be entitled to payment for the use by the corporation of such culverts.

Period for completion of works.

34. If the pier and the railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Penalty imposed unless railways opened within time limited.

35. If the Company fail within the period limited by this Act to complete the railways the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the respective railway is completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the respective railway and the said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner

as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854 and every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank specified in such warrant or order and shall not be paid thereout except as herein-after provided but no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the respective railway by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

A.D. 1907.

36. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the respective railway or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit and if no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has or have been abandoned be paid or transferred to such receiver or be applied in the discretion of the Court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

Application
of penalties.

37. The Company in addition to the other lands which they are by this Act authorised to acquire may enter upon and take compulsorily or by agreement and may hold appropriate and use

Power to
Company to
take addi-
tional lands.

A.D. 1907. — for the general purposes of their undertaking the lands following delineated on the deposited plans and described in the deposited books of reference or any part thereof or any estates or interests in any such lands (that is to say):—

In the said city and county of Kingston-upon-Hull and parish of Sculcoates—

Certain land (being part of the property known as the Western Reservation) belonging to the mayor aldermen and citizens of the city and county of Kingston-upon-Hull adjoining and on the west side of the Company's dock estate extending from the Hedon Road to the foot of the embankment of the River Humber:

In the West Riding of the county of York—

(1) In the rural district of Selby—

(A) A strip of land in the parish of Drax adjoining and on the north-west side of the main line of the Company and extending from the south side of Brigg Lane to the western boundary of the property numbered on the Ordnance map of the West Riding of Yorkshire scale $\frac{1}{2500}$ 1890 edition 71 in the said parish;

(B) A strip of land in the parish of Drax adjoining and on the south-east side of the said main line and extending from the south side of Brigg Lane to the western boundary of the property numbered on the said Ordnance map 72 in the said parish;

(C) A strip of land in the parish of Carlton adjoining and on the north-west side of the said main line and extending from the eastern boundary of the property numbered on the said Ordnance map 261 in that parish to the western boundary of the property numbered on the said Ordnance map 258 in that parish;

(D) A strip of land in the parish of Carlton adjoining and on the south-east side of the said main line and extending from the eastern boundary of the property numbered on the said Ordnance map 264 in the said parish to the western boundary of the property numbered on the said Ordnance map 271 in that parish:

(2) In the rural district of Hemsworth—

(A) A strip of land in the parish of North Elmsall adjoining and on the east side of the Wath branch of

the Company and extending from a point four chains or thereabouts southward of Wrangbrook Lane to where the boundary between the parishes of North Elmsall and South Elmsall crosses the said branch railway ;

A.D. 1907.

(B) Land in the parish of Shafton adjoining and on the north-west side of the main line of the Company being part of the enclosure numbered 77 in the said parish on the Ordnance map of the West Riding of Yorkshire scale $\frac{1}{2500}$ second edition 1906 and extending from the said main line in a westerly direction to the east side of the Monckton main branch railway of the Company ;

(c) Land in the said parish of Shafton adjoining and on the west side of the said Monckton main branch railway being the enclosure numbered on the last-mentioned Ordnance map 83 in the said parish and extending from the said branch railway in a westerly direction to the stream called Pool's Dike :

And the Company may divert in the manner shown on the deposited plans the public footpath crossing the said lands numbered on the said last-mentioned Ordnance map 77 and 83 in the parish of Shafton between the bridge carrying that footpath over the said main line and the bridge carrying the said footpath over the said Pool's Dike and subject to the provisions of this Act may stop up and discontinue the said footpath between such bridges respectively.

If any of the lands described in this section shall have before the passing of this Act been purchased by the Company the purchase thereof by the Company and the expenditure of money by the Company in or in reference to the purchase are hereby sanctioned and confirmed and such lands shall be deemed to be lands acquired under the powers of this Act.

38. Where this Act authorises the diversion of a footpath and the stopping up of an existing footpath or portion thereof such stopping up shall not take place until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use.

Stopping up
footpath in
case of diver-
sion.

Before applying to the justices for their certificate the Company shall give to the road authority of the district in which the existing footpath is situate seven days' notice in writing of their intention to apply for the same.

A.D. 1907.

As from the date of the said certificate all rights of way over or along the existing footpath or portion thereof shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of footpath stopped up as far as the same is bounded on both sides by lands of the Company :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Repair of
new foot-
path.

39. The new portion of footpath in the parish of Shafton aforesaid to be made by the Company under the powers of this Act shall unless otherwise agreed when made and completed be repaired and maintained by and at the expense of the parties on whom the expense of maintaining the adjoining portions of the existing footpath now devolves.

Persons un-
der disability
may grant
easements
&c.

40. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Land for ex-
traordinary
purposes.

41. The Company in addition to any other lands which by this Act they are authorised to acquire may by agreement from time to time purchase additional land for any of the extraordinary purposes specified in the Railways Clauses Consolidation Act 1845 connected with their undertaking not exceeding in quantity five acres but nothing in that Act or in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land purchased under the powers of this section.

Period for
compulsory
purchase of
lands.

42. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

43. The Company may apply for any of the purposes of this Act to which capital is properly applicable any moneys which by any previous Act or Acts they are authorised to raise by shares stock debenture stock or borrowing and which are not by the Act or Acts under which they are authorised to be raised made applicable to any special purposes or which being so made applicable are not required for such special purposes.

A.D. 1907.

Power to
apply funds.

44. The agreement made between the mayor aldermen and citizens of the city and county of Kingston-upon-Hull and the Company set out in the Second Schedule to this Act is hereby confirmed and made binding upon the parties thereto.

Confirmation
of agreement
with Kingston-
upon-Hull Cor-
poration.

45. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

46. Nothing in this Act contained shall exempt the Company or the railway from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Provision as
to general
Railway
Acts.

47. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

A.D. 1907. SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

I.—RATES ON PERSONS USING THE PIER.

	s.	d.
For every passenger or other person who shall land on the pier from or embark from it on board of any vessel for each time any sum not exceeding - - - - -	1	0

II.—RATES ON PASSENGERS' LUGGAGE BICYCLES &c. LANDED SHIPPED OR TRANSHIPPED AT THE PIER.

	s.	d.
For every trunk portmanteau box parcel or other package within the description of luggage and not borne by passengers not exceeding 84 pounds - - - - -	0	6
Over 84 pounds and not exceeding 224 pounds - - - - -	1	0
And for every 20 pounds weight in addition - - - - -	0	1
For every bicycle tricycle or other similar vehicle - - - - -	0	4

THE SECOND SCHEDULE.

Stamp.



AGREEMENT made the fourth day of April 1907 between the MAYOR ALDERMEN AND CITIZENS OF THE CITY AND COUNTY OF KINGSTON-UPON-HULL (herein-after called "the Corporation") of the one part and the HULL AND BARNSELY RAILWAY COMPANY (herein-after called "the Company") of the other part.

WHEREAS in the last session of Parliament the Corporation promoted a Bill seeking power (amongst other things) to construct and maintain a pier or landing place in the River Humber in part opposite to land of the Corporation known as the Western Reservation and to dredge the said river so as to maintain in front of the said pier a depth of 18 feet of water at low water of spring tides and thus enable vessels of large draught to land and embark passengers and load and unload goods at the said pier at all states of the tide:

And whereas such Bill having passed through the House of Commons was rejected by the House of Lords:

And whereas the Corporation and the Company are of opinion that the construction of the said pier or landing place and works for the purposes aforesaid would be of great public advantage and it has been agreed between them that the Company shall apply in the present session of Parliament for powers to construct a similar pier and works

and that the Corporation shall assist the Company therein as herein-
after appears : A.D. 1907.

And whereas the Company are accordingly now promoting a Bill for the above object (herein-after referred to as "the Bill") and in order to enable them to construct and use the said proposed pier and works the Company will require to purchase and take a portion of the said Western Reservation and the Bill contains powers for the compulsory purchase of the same :

And whereas the Corporation are willing to convey to the Company the said portion of the said Western Reservation upon the terms and conditions herein-after contained :

Now it is hereby agreed by and between the parties hereto as follows :—

1. The Corporation agree to sell and the Company agree to purchase for the purposes herein expressed and for the consideration herein-after mentioned All that piece or parcel of land containing 15 acres or thereabouts being part of the said Western Reservation bounded on the north by Hedon Road on the south by the River Humber on the east by the Dock Estate of the Company and on the west by the remaining land of the Corporation which said piece or parcel of land hereby agreed to be sold is distinguished or referred to in the Parliamentary plans and book of reference deposited in connexion with the Bill in the office of the clerk of the peace for the said city by the numbers 1 and 1A in the parish of Sculcoates and is delineated on the plan attached hereto and therein coloured red together with the mines and minerals thereunder.

2. The consideration for the said sale shall be the payment by the Company to the Corporation of an annual rentcharge of £1250 which rentcharge shall commence to accrue from the 1st day of January 1910 and shall thereafter be payable half-yearly the first payment being due on the 1st day of July 1910 and the said rentcharge shall be a first charge upon the land hereby agreed to be sold and shall also be secured in manner provided by section 11 of the Lands Clauses Consolidation Act 1845 The said rentcharge is fixed as the price of 15 acres of the said land and is subject to proportionate increase or reduction if the quantity taken is found on measurement to be more or less than that quantity.

3. The Corporation shall not be required to furnish any abstract of title to the said land or any further evidence of their title thereto than a statutory declaration made by some competent official of the Corporation that the Corporation have been in uninterrupted possession and occupation of the said land for more than 12 years.

4. The said land shall be conveyed to the Company subject to the rights of the public over and along the footpath 12 feet wide as shown on the said plan and the Corporation hereby agree to the Company constructing a suitable bridge to carry the said footpath over the two westernmost of the approaches to the said pier as shown on the

A.D. 19
— 07.

deposited plans and sections such footbridge to be eight feet wide and to be approached at each end by suitable steps also eight feet wide constructed unless otherwise approved by the Corporation in line with the footpath and such footbridge and steps to be constructed to the reasonable satisfaction of the city engineer to the Corporation.

5. The Company shall be relieved of all obligations on their behalf (if any) whether such obligations arise under agreement statute or otherwise to complete the embanking and making up of the ground on the said Western Reservation and also of their obligation to construct a permanent footpath on the western boundary of the said Western Reservation or to repair the footpath on the embankment where such embankment will remain the property of the Corporation. But nothing herein contained shall be deemed to relieve the Company of their liability and obligation to maintain the existing temporary footpath until such time as the Corporation shall at their own absolute discretion make up the ground and provide a permanent footpath upon the western side of the said Western Reservation.

6. The land hereby agreed to be sold shall be held used and appropriated at the cost and expense of the Company for the purpose of the said pier and works in connexion therewith and subject to the power of transfer herein-after in clause 7 contained the Company shall retain absolutely in their own hands the management and control of the said pier and works and shall not without the consent in writing of the Corporation sell dispose of or lease the said land or any part thereof or any works or conveniences connected therewith or any part thereof nor in any way transfer the management and control thereof or of any part thereof to or enter into any joint purse arrangement with any other company in connexion therewith or make application to Parliament for any of such purposes.

7. The said land and the said pier and works in connexion therewith shall be deemed to form part of the Alexandra Dock undertaking of the Company and as such shall be subject to the provisions of section 93 of the Hull Joint Dock Act 1899.

8. If the Company do not construct and use a substantial part of the said pier and works and use the said land in connexion therewith within 4 years from the date of this agreement or if at any time after the construction of the said pier and works the same shall be abandoned or shall cease to be substantially used for the purpose for which the land is hereby expressed to be acquired or if the Company attempt to sell or lease the said land or part with the control or management thereof (except by authority of Parliament as part of their undertaking) without the consent of the Corporation then the Corporation shall be at liberty to require the Company to reconvey to them the said land and the Company shall reconvey the same accordingly and upon the said land being reconveyed to the Corporation the said rentcharge shall cease and the Company shall upon request remove so much of

the said pier and works as shall be in front of the said land and shall be entitled within 12 months from the date of such requirement to reconvey as aforesaid to remove from the said land all buildings erections railways sidings and works. A.D. 1907.

9. Nothing herein contained shall be deemed to prejudice or affect the right of the Corporation to construct and maintain a pier or any works of a similar nature in connexion with the remainder of the Western Reservation and foreshore situate to the west of the land hereby agreed to be sold.

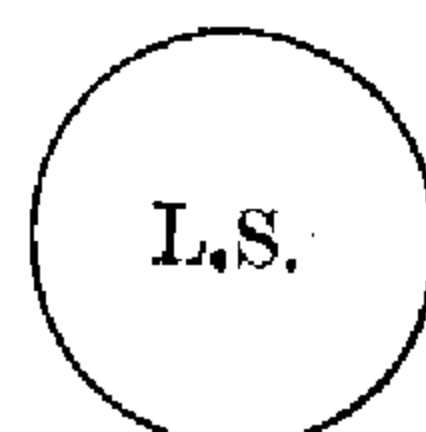
10. Nothing herein contained is to be deemed to prejudice or affect the rights or liabilities of the Corporation or the Company under or by virtue of any Acts of Parliament or any agreements or agreement to which the parties hereto are parties further or otherwise than is herein expressly stipulated.

11. This agreement is provisional upon and subject to the Company obtaining Parliamentary powers in the present session of Parliament for the construction of the said pier and works substantially in accordance with the plans deposited in connexion with the Bill Subject as aforesaid the Company shall be entitled to vacant possession of the said land as soon as they are desirous of commencing their said pier and works subject to such terminable agreements as may exist affecting any part of the said land.

12. This agreement shall be scheduled to the Bill in order that it may be confirmed by Parliament and made binding on the parties.

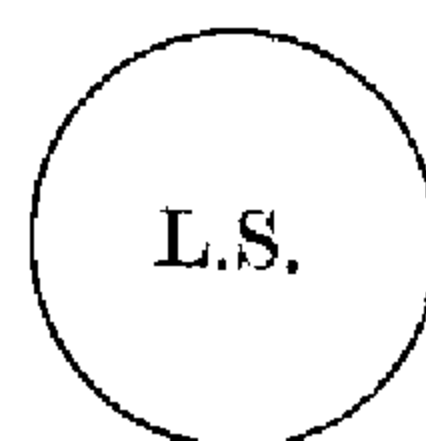
In witness whereof the Corporation and the Company have caused their respective common seals to be affixed hereto the day and year first before written.

The common seal of the Corporation was hereunto }
affixed in the presence of }



E. LAVERACK
Town Clerk Hull.

The common seal of the Hull and Barnsley Railway }
Company was hereunto affixed in the presence of }



W. S. WRIGHT
Chairman.

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